

MASTER SERVICE AGREEMENT CUM APPOINTMENT LETTER

(Website Development, NDA, Non-Compete & Server Protection Agreement)

Date: / / 2026

This Agreement is made between:

Ice Technology Lab (A Unit Of Ice Academy Pvt. Ltd.)
(Hereinafter referred to as the “Company”)

AND

Mr. Vivek Jha & Team (Freelancer Developer)
(Hereinafter referred to as the “Developer”)

1. APPOINTMENT

The Company hereby appoints the Developer on a freelance contractual basis for development of its official website www.icetl.com along with LMS.

This engagement does not constitute employment under any law.

2. SCOPE OF WORK

The Developer shall deliver a **complete functional website with LMS**, including:

- Design & develop complete website with LMS
- Registration & Login System
- Course Management System
- Video/Class Access System
- Admin Dashboard
- Centre Dashboard
- Student Dashboard
- Faculty Dashboard
- Online Payment Integration (students can pay fees online)
- Secure database & data protection
- Ensure security, responsiveness & performance
- Deliver within agreed timeline
- Provide revisions as required

ICE TECHNOLOGY LAB

(A Unit of Ice Academy Private Limited)

Ground Floor, Anjali Apartment, Behind Alankar Place, Boring Road, Patna – 800001
Mobile: +91-8797078611 | Email: icetl@outlook.com | Website: www.icetl.com

3.PROJECT COST & PAYMENT TERMS (10 MILESTONES SYSTEM)

Total Project Cost: ₹40,000/-

Payment will be made in **10 parts (milestones)** based on work progress:

Each milestone ≈ **₹4,000/-**

Milestone Breakdown:

1. Project Setup & Basic Structure
2. UI/UX Design Completion
3. Homepage + Core Pages
4. Student Registration/Login System
5. LMS Structure (Course Upload System)
6. Student Dashboard
7. Admin Panel Setup
8. Online Payment Integration
9. Testing & Bug Fixing
10. Final Delivery & Deployment

👉 Payment will be released **only after each milestone approval by Company**

👉 No advance obligation beyond agreed initial start (if any)

4. REFUND & PENALTY (VERY STRICT CLAUSE)

4.1 If Developer fails to:

- Complete project within 4 months
- Deliver agreed features (LMS + payment system)
- Provide working website

Then:

- Developer must refund full amount received
- Plus penalty
- Company can take legal action

4.2 If project is partially completed:

Company may recover proportionate refund + damage

5. MAINTENANCE

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- 1 Year: Free Maintenance

6. OWNERSHIP & INTELLECTUAL PROPERTY

- Domain www.icetl.com, server, hosting, LMS, theme, code & all data are exclusive property of Company
- Developer shall have no ownership rights
- No reuse, resale, duplication allowed

7. NON-DISCLOSURE AGREEMENT (NDA)

The Developer shall:

- Maintain strict confidentiality of all Company data
- Not share, copy, or misuse any information
- Not disclose credentials or business data

This obligation shall remain valid permanently.

8. SERVER DATA PROTECTION (CRITICAL CLAUSE)

8.1 The Developer acknowledges that Company server (including hosting from MilesWeb) contains sensitive data unrelated to this project.

8.2 Access is strictly limited to www.icetl.com development only.

8.3 The Developer is strictly prohibited from:

- Accessing unrelated data
- Modifying existing server data
- Copying/downloading/transferring data
- Selling or using data for business purposes
- Deleting or damaging any files
- Creating unauthorized backups

8.4 The Developer shall NOT use server for:

- Personal work

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- Third-party projects
- Unauthorized business

8.5 Any violation shall be treated as:

- Criminal offense under IT Act, 2000
- Serious breach of contract

8.6 Developer shall be liable for full actual loss (unlimited liability).

9. DATA SECURITY & LIABILITY

- Any breach, hacking, or misuse → Developer fully responsible
- Company has right to claim full damages & take legal action

10. RESTRICTIONS

Developer shall NOT:

- Insert backdoor or hidden access
- Misuse server/domain
- Copy or replicate project
- Claim ownership

11. GMB & EMAIL SECURITY

- Limited access
- No misuse

12. DEADLINE & PERFORMANCE (STRICT TIMELINE)

12.1 The Developer shall complete and deliver the entire website www.icetl.com along with LMS within 4 (Four) months from the project start date.

12.2 Timeline includes development, testing, bug fixing & deployment.

12.3 In case of delay without Company approval:

- Company may terminate agreement
- Pending payment may be withheld

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- Project may be assigned to another developer at Developer's risk & cost
- Delay → termination + Penalty + payment hold

12.4 Developer shall compensate for delay-related losses.

12.5 Time is essence of contract and mandatory to follow.

13. NO BACKDOOR GUARANTEE

Hidden access = fraud

14. AUDIT RIGHTS

Company can monitor anytime

15. TERMINATION

Company may terminate immediately if:

- Confidentiality breach
- Delay or poor quality work
- Data misuse or fraud
- Data breach

16. SURVIVAL CLAUSE

- All security & NDA clauses remain valid after termination

17. HANDOVER

Developer must provide:

- Full Admin Access
- Source Code
- All credentials
- Full access + code mandatory
- Code must be shared regularly
- No lock / hidden access
- Immediate handover on dispute

Failure = Legal breach & fraud

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18. INDEMNITY

Developer shall compensate Company for:

- Data loss
- Financial damages
- Legal liabilities arising from Developer actions
- Developer liable for all damages, losses, legal claims

19. LEGAL ACTION

Company reserves full rights to initiate:

- Civil proceedings (damage recovery)
- Criminal proceedings (fraud, IT violations)

20. JURISDICTION

All disputes subject to Patna, Bihar (India) courts.

21. NON-COMPETE & NON-REUSE (STRICT)

21.1 Developer shall not, during project and for 2 years after completion:

- Develop similar LMS
- Use same design, structure, UI/UX, or concept
- Reuse or resell same code/framework
- Work with competitors using similar model

21.2 Violation → unlimited financial liability + legal action

22. SOURCE CODE ESCROW & CONTROL

22.1 Developer must:

- Share complete source code regularly
- Maintain backup under Company control

22.2 Developer shall NOT:

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- Withhold code
- Lock or restrict access
- Keep hidden access

22.3 In case of dispute/termination:

- Immediate handover required
- Company can continue with another developer

Violation = Fraud & criminal breach of trust

23. DECLARATION

I, Mr. Vivek Jha, accept all terms and agree to comply strictly.

SIGNATURES

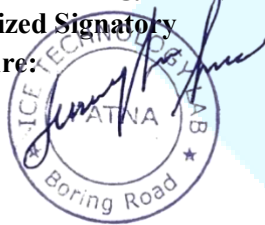
For Ice Technology Lab (A Unit of Ice Academy Pvt. Ltd)

Authorized Signatory

Signature:

Name:

Date:



Developer (Vivek Jha) & Team

Signature:

Date:

Witness 1:

Witness 2:

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